

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF PUERTO RICO**

**MICHAEL VICÉNS-SEGURA,
KATGIE TORRENS-BETANCOURT,**

Plaintiffs,

v.

**STEPHEN GLOVER A/K/A STEVE O,
CHRIS PONTIUS, MUDFLAP MEDIA
LLC, YEAH DUDE PRODUCTIONS
LLC, SCOTT RANDOLPH, JARROD
BROM AND XYZ UNKNOWN
DEFENDANTS,**

Defendants.

Civil No. 19-01189 (JAG)

TORTS pursuant to Articles 1802,
1803, & 282 of the Civil Code
of Puerto Rico

(Trial by Jury Demanded)

MICHAEL VICÉNS-SEGURA,

Cross-Claimants,

v.

**JOVAN MEJIAS D/B/A/ RINCÓN
WAVES HYDROFLIGHTS, FABIOLA
CORDERO AND XYZ
UNKNOWN DEFENDANTS,**

Cross-Defendants.

Civil No. 19-01189 (JAG)

CROSSCLAIM

TORTS pursuant to Articles 1802 &
1803 of the Civil Code of Puerto Rico

(Trial by Jury Demanded)

MUDFLAP MEDIA, LLC,

Third-Party Plaintiff,

v.

**JOVAN MEJIAS D/B/A/ RINCÓN
WAVES HYDROFLIGHTS, FABIOLA
CORDERO AND XYZ**

UNKNOWN DEFENDANTS,

Third-Party Defendants.

Civil No. 19-01189 (JAG)

Breach of Contract pursuant to Articles
1044, 1056, 1060, and 1077 of the Civil
Code of Puerto Rico

(Trial by Jury Demanded)

AMENDED COMPLAINT

TO THE HONORABLE COURT:

COME NOW, the Plaintiffs, Michael Vicéns-Segura (hereinafter referred to as “Mr. Vicéns”) and Katgie Torrens-Betancourt (hereinafter referred to as “Mrs. Torrens”), by and through the undersigned counsel, and before this Honorable Court respectfully allege and pray as follows:

**I.
JURISDICTION AND VENUE**

1. This Honorable Court has subject matter jurisdiction pursuant to 28 U.S.C. 1332, under diversity jurisdiction, because each of the Plaintiffs are citizens of the Commonwealth of Puerto Rico and Defendants are comprised of citizens or corporations of the United States (New York, California and/or Florida). Moreover, the amount in controversy is in excess of seventy-five thousand dollars (\$75,000.00), exclusive of interest and costs.

2. As previously alleged herein, this Court has proper jurisdiction over the matter aforementioned by way of subject matter jurisdiction, pursuant to 28 U.S.C. 1332, under diversity jurisdiction. Since diversity jurisdiction has been established as between original Plaintiff and

Defendant, ancillary jurisdiction against non-diverse, third-party defendants is applicable, subject to this Court's discretion. Consequently, this Court has jurisdiction over this Cross-Claim, pursuant to 28 U.S.C. 1332, under ancillary jurisdiction, and the Cross-Defendants, who are deemed indispensable parties by Defendant, Mudflap Media, LLC. Additionally, the Cross-Defendants are liable parties who were present at and otherwise involved in the incident that stemmed from the same common nucleus of operative fact that forms Plaintiffs' operative complaint. Plaintiffs request that the Court consider that this Cross-Claim will not place a burden on judicial economy, nor disallow convenience to the parties and/or will alleviate fairness to the litigants.

3. Venue is proper in this District pursuant to 28 U.S.C. 1391(b)(1) and (2) since the injuries to Plaintiffs ultimately occurred in Rincón, Puerto Rico while Defendants were filming a dangerous stunt for an upcoming project.

II. THE PARTIES

4. Mr. Vicéns is a citizen of the Commonwealth of Puerto Rico and citizen of the United States of America.

5. Mr. Vicéns is a natural person married to Mrs. Torrens, another natural person who is also a citizen of the Commonwealth of Puerto Rico.

6. At all times material, Plaintiffs were married and between them a community property partnership exists.

7. Defendant, Stephen Glover (a/k/a Steve-O) (hereinafter referred to as "Defendant, Glover") and Defendant, Chris Pontius (hereinafter referred to as "Defendant, Pontius"); along with Defendant, Mudflap Media, LLC (hereinafter referred to as "Defendant, Mudflap"), Defendant, Yeah Dude Productions, LLC (hereinafter referred to as "Defendant, Yeah Dude"), Cross-Claim Defendant, XYZ Unknown Defendants (hereinafter referred to as "Defendant,

XYZ”), Producer, Defendant, Scott Randolph (hereinafter referred to as “Defendant, Randolph”), and Producer, Jarrod Brom (hereinafter referred to as “Defendant, Brom”), planned, designed, and financed a dangerous stunt to be performed in Puerto Rico on March 11, 2018 for one of a series of film projects, which stemmed from the “Jackass” production series. The specific incident involving Mr. Vicéns is hereinafter referred to as the “JETSKI TUG OF WAR stunt.”

8. Defendants, Randolph and Brom are the parties that scripted, produced and/or directed the JETSKI TUG OF WAR stunt that was filmed on March 11, 2018 in Rincón.

9. Greg Carson d/b/a Taino Divers, Inc (hereinafter referred to as “Taino Divers, Inc.”) is a Puerto Rico For-Profit Company, which was brought into this lawsuit as an alias by and through a Third-Party Complaint. It adheres to the existing Laws of Puerto Rico, with its principal place of business in the District of Puerto Rico. Taino Divers Inc. operated as the filming platform and expert safety officer in connection with the JETSKI TUG OF WAR stunt.

10. Cross-Defendant, Jovan Mejias d/b/a Rincon Waves and Hydroflights (hereinafter referred to as “Mejias”), is a Puerto Rico For-Profit Company and was specifically brought into this lawsuit by and through a Third-Party Complaint. It adheres to the existing Laws of Puerto Rico, with its principal place of business is in the District of Puerto Rico. Rincon Waves & Hydroflights contracted with Defendant, Mudflap Media, LLC for the use of two jet skis to be used and filmed during the JETSKI TUG OF WAR stunt.

11. Cross-Defendant, Fabiola Cordera (hereinafter referred to as “Cordero”), is a resident of Puerto Rico, and was specifically brought into this lawsuit by and through a Third-Party Complaint. At all times material, Cordera was an employee and/or agent of Rincon Waves and Hydroflights, and was acting within the course and scope of her employment on March 11, 2018.

12. Cross-Defendant, XYZ Unknown Defendants (hereinafter referred to as “XYZ”), a Puerto Rico For-Profit Company, was specifically brought into this lawsuit by and through a Third-Party Complaint. It adheres to the existing Laws of Puerto Rico, with its principal place of business is in the District of Puerto Rico.

III.
TIMELINE OF EVENTS
A. WELCOME TO “JACKASS”

13. In the 1990s, non-party Brandon Cole “Bam” Margera, filmed a series of videos with his friends and family, which they dubbed the “CKY Crew.” The series featured different content, stunts and pranks. The series, comprised of six videos, became an overnight sensation and caught the eye of non-party Jeff Tremaine.

14. Tremaine and Margera joined forces with non-party Philip John “P.J.” Clapp (a/k/a “Johnny Knoxville”) and Defendant Stephen Glover (a/k/a “Steve-O”). The troop filmed what would be a pilot episode of what would become the wildly popular “Jackass” television franchise.

15. The show would often open up, “Welcome to Jackass,” and would showcase wild stunts in a world before iPhones, social media and YouTube. The show eventually morphed into a series of films and spin-offs. Now the stunts reach millions on a daily basis with less formality due to the ease of distribution on the internet.

16. In October of 2000, MTV secured the rights to the show and “Jackass” debuted on national television. It became highly successful.

17. The troop leveraged their success on the “Jackass” franchise into other shows for MTV.

18. Thereafter, the “Jackass” film series debuted, featuring the group performing increasingly dangerous stunts.

19. Additional side projects developed with each cast member embarking on different stunts, each seemingly more dangerous than the last.

20. During the filming of televised stunts, the primary cast of the stunt troop have reportedly incurred over 75 injuries, including 28 broken bones, 36 head injuries, and 1 alligator-related injury. The estimated total cost of injuries across the entire cast is \$24,263,000. That figure only accounts for the reported injuries suffered by the main members of the “Jackass” troop.

21. In a recent lawsuit entitled *Margera vs. Paramount Pictures, et al.*, former cast member Bam Margera sued, alleging that he was the co-creator of the “Jackass” troop. Bam Margera notes a longtime documented history of physical and mental health issues as a result of participation in the stunt troop projects, including diagnosed bipolar disorder and claims he has “been the victim of unconscionable discrimination at the hands of Defendants.”

B. “Steve-O”

22. Mr. Glover, better known as “Steve-O,” has been known for a well-documented history of particularly dangerous behavior.

23. In 2003, Glover was performing at a club called The Abyss. During the performance, Glover stapled his own scrotum to his thigh. Ryan Bergeron, a 19-year-old attendee of the show, volunteered to take part in a stunt and signed a written waiver before he did so. The stunt was essentially to try and get past a bouncer. During his attempt at the stunt, the bouncer proceeded to pick up and throw Mr. Bergeron to the ground and he landed on his head. Glover was charged as a principal to battery for his involvement in the stunt and agreed to probation. Glover additionally agreed not to perform again in that jurisdiction.

24. After the “Jackass” television show ended, Glover co-starred with Pontius on another MTV show entitled “Wildboyz.” It lasted from 2003 until 2006. According to public

descriptions of the show, they “performed stunts and acts with animals, often putting themselves in situations for which they were not trained.”

C. The JET SKI TUG OF WAR

25. The subject “stunt” was part of the “Jackass” lineage. In 2002’s “Jackass: The Movie,” the troop performed a stunt called, “BMX Tug-of-War.”¹ In this stunt, one end of a bungee cord or rope is tied to a large man on a couch and the other end is tied to a stuntperson on a BMX bicycle. The man on the bicycle then pedals towards a ramp with the rope expanding to its limit, resulting in the bicyclist falling on a cactus.

26. In another stunt on the “Jackass” show, entitled “Bungee Boogie,” Glover watches as another character is propelled towards a ramp via a bungee cord while on skates. The intent is for character on skates to use the ramp to fly into an above ground swimming pool. In take after take, the troop member falls or crashes into the side of the pool and the group laughs. The troop member finally executes the stunt and complains about his busted lip. Others try derivations of the stunt, each resulting various crashes, injuries and group laughter.²

27. A third evolution of this “stunt” was in the movie, “Jackass Part 2.” In it, a small-statured man, who is called “Wee Man” by the troop, jumps off of a bridge while attached to a bungee cord. The other end of the bungee cord is attached to a very large-statured man named “Preston.” Preston then also jumps and the two ricochet off of each other as they plunge into the water.³

28. In the beginning of one of the videos, one member of the stunt troop says that when he gets ideas, he doesn’t write them down. He just draws a picture and “fax[es] it to Los Angeles.”

¹ <https://youtu.be/q7SaHSaO7eM>

² https://youtu.be/JdNt_cC2g0c

³ <https://youtu.be/HgCuoUMGkaY>

For the stunt referenced hereinabove in Paragraph 24, he just drew “a fat-ass and a little guy and a bungee cord connected.” His hand-drawn depiction of the stunt is attached hereto as Exhibit A(1).

29. That video was not uploaded by an official troop member or show account and yet it still amassed over 1,000,000 views.

D. “Apocalypse Dudes”

30. On March 9, 2018, Glover posted in Twitter, “The Wildboyz decided it wasn’t just time to get back to work and go crazier than ever, but that we should do it in a way that actually helps both animals and people. The world won’t end on our watch! Get ready, Puerto Rico, the “Apocalypse Dudes” are coming your way right now!” Attached hereto as Exhibit A(2).

31. A similar post was also posted to Glover’s official Facebook account, stating that “The Wildboyz decided it wasn’t just time to get back to work and go crazier than ever, but that we should do it in a way that actually helps both animals and people. The world won’t end on our watch! And get ready, Puerto Rico, the “Apocalypse Dudes” are coming your way right now, and we’re bringing Wendy! #meetourcrew #yeahdudeproductions #apocalypsedudes.” Attached hereto as Exhibit A(3).

32. Wildboyz was a spin-off and follow-up to “Jackass.” It debuted in 2003 on MTV. The show featured co-stars Glover and Pontius.

33. By 2018, Wildboyz stopped. No project named “Apocalypse Dudes” was subsequently aired. It is unknown what production was intended to be filmed in Puerto Rico, but there was word that a new project would be released under one of those names.

34. Even after the subject incident in which Mr. Vicéns was injured, on March 22, 2018, Defendant, Pontius, made a social media post to promote “Jackass,” the “Wildboyz” and “Apocalypse Dudes.” Attached hereto as Exhibit A(4).

35. Defendant, Pontius also filmed a podcast entitled, “(Raab Himself) Bathroom Break Podcast #24 – Chris Pontius,” in which he referenced the Puerto Rico trip and project. A segment of the footage appears to have been edited out.

36. There is a new “Jackass” movie, entitled, “Jackass forever,” which is being released in 2022.

E. The Subject Incident

37. On or about March 11, 2018, Mr. Vicéns was approached at the Black Eagle Marina in Rincón, Puerto Rico by Defendant, Mejias, who requested the use of Plaintiff’s jet ski for the filming of a scene for an upcoming project. Plaintiff agreed to the request.

38. At or about 1:00 P.M. on or about March 11, 2018, while the crew started to prepare for the scene involving his jet ski, Mr. Vicéns became aware for the first time that the stunt in which the jet skis would be used involved Defendants, Glover and Pontius, operating the two jet skis in opposite directions at high rates of speed with a single bungee cord attached to each of their persons for the purpose of determining which actor would be pulled off of his respective jet ski first.

39. At all times material, the JETSKI TUG OF WAR stunt involved Defendant, Glover, operating, Mr. Vicéns’, jet ski with Defendant, Pontius, on the opposite jet ski, which was owned by Defendant, Mejias, with both riders at a close proximity to the shoreline.

40. The scene was filmed from cameras installed on a 35-foot vessel named *Katmatu*, which was owned by non-party Taino Divers, Inc, who duly served as the “safety boat.” Attached hereto as Exhibit A(5).

41. Additional footage of the scene was captured from cameras installed on both jet skis.

42. At or about 1:30 P.M., while the jet skis were in close proximity to each other and the *Katmatu*, Mr. Vicéns was instructed to remain in the water next to his jet ski and to hold it in place as a result of the weather and sea conditions that were present at that time and place.

43. At all times material, the two actors then sped off in opposite directions while Mr. Vicéns and Defendant, Mejias, who had held the jet skis in place, remained in the water.

44. At that time and place, and as the two actors sped away from each other on their respective jet skis, the bungee cord snapped off of Defendant, Glover's, harness and struck Mr. Vicéns, resulting in severe injuries to the right side of his head, internally causing a skull fracture, as well as severe pain and pressure in the right temporal lobe, which warranted that he be placed in a medically-induced coma due to the severity of trauma to his skull and brain.

45. At all times material, Mr. Vicéns was then transported to Rincón Emergency Clinic where his physical injuries were treated. Immediately thereafter, Mr. Vicens was transported by ambulance to the Mayagüez Medical Center.

46. While intubated, Mr. Vicéns, was then transported by helicopter to Centro Médico in Río Piedras as a result of the severity of the physical injury that consisted of a diagnosed skull fracture and brain bleed.

47. At the same time and place, Mr. Vicéns lost consciousness and was subjected to an emergency craniotomy at the Río Piedras Medical Center on the night of March 11, 2018, which required an invasive procedure involving Mr. Vicéns' jaw muscle.

48. As a result of the incident, including the force, impact and body area that was involved, the severity of Mr. Vicéns' injuries were severe and the diagnoses included head injuries and a contusion that required the placing of metal plates in Plaintiff's right temporal lobe.

49. Additionally, an MRI showed that Mr. Vicéns also suffered a herniation at C5, in addition to the C6 disc pressing against his spinal cord.

50. Since the incident, Mr. Vicéns has suffered from multiple traumas stemming from constant pain on his right side of his head and jaw where permanent scars remain, lingering memory issues, and the constant pain in his neck and middle back.

51. On or about June 18, 2018, Mr. Vicéns was denied a second-class medical certificate by the Federal Aviation Administration (FAA) and therefore can no longer operate as an Air Traffic Controller, which was his previous primary source of income before March 11, 2018. At the present time, Mr. Vicéns has not reached the threshold medical status to regain the second-class FAA medical certificate and likely will not obtain this status in the foreseeable future as a result of the injuries he sustained on March 11, 2018 in this incident.

52. The aforementioned physical injuries in the past and future, the loss of income, loss of earning capacity and the medical stress caused by his inability to earn a living as an Air Traffic Controller has caused mental anguish and loss of companionship for Mr. Vicéns, and Mrs. Torrens, his wife, ultimately resulting in the need for professional psychological evaluation and treatment.

53. As a direct result of this incident, Mr. Vicéns continues to endure pain and suffering throughout a prolonged recovery consisting of a specifically tailored medical treatment plan.

54. Mr. Vicéns' inability to pursue his decorated career for the Federal Aviation Administration as a tenured Certified Air Traffic Controller is no longer a realistic alternative, warranting economic damages for a permanent loss of future earning potential. While Plaintiff defers to the judgment of a jury, he estimates the value of these non-economic damages at or above \$2,430,000.00.

55. Because of the incident, Mr. Vicéns has lost income and continues to accrue additional economic expenses, in addition to the economic damages for lost and future wages and undesired expenses. While Plaintiff defers to the judgment of a jury, he estimates the value of these economic damages at or above \$565,000.00.

56. While the cost and effects of these injuries have still not reached a summation, they are permanent in nature, and they have resulted in extensive pain and suffering, scarring, anxiety, disfigurement, embarrassment, mental anguish, loss of capacity for the enjoyment of life, loss of earnings, loss of ability to earn money, and they are destined to continue permanently into the foreseeable future. While Plaintiff defers to the judgment of a jury, he estimates the value of these non-economic damages at or above \$10,000,000.00.

IV.
CAUSES OF ACTION
COUNT I: NEGLIGENCE AS TO STEPHEN GLOVER (A/K/A STEVE O)

57. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

58. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Glover, owed a duty to Mr. Vicéns, and all others similarly situated, to use reasonable care and prevent foreseeable harm in the operation of the watercraft in the previously devised stunt.

59. Defendant, Glover, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, by failing to exercise reasonable care in the operation of the watercraft.

60. At all times material, Defendant, Glover, knew or should have known that having a Banshee Bungee hooked to himself and Defendant, Pontius, while attempting to operate watercrafts traveling in opposite directions, posed a foreseeable risk of harm.

61. The direct and proximate result of Defendant, Glover's, negligence, Mr. Vicéns suffered permanent physical injury and resulting pain and suffering, disability, scarring, disfigurement, mental pain and suffering, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT II: NEGLIGENCE AS TO CHRIS PONTIUS

62. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

63. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Pontius, owed a duty to Mr. Vicéns, and all others similarly situated, to use reasonable care and prevent foreseeable harm in the operation of the watercraft in the previously devised stunt.

64. Defendant, Pontius, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, by failing to exercise reasonable care in the operation of the watercraft.

65. At all times material, Defendant, Pontius, knew or should have known that having a Banshee Bungee hooked to himself and Defendant, Glover, while attempting to operate watercrafts traveling in opposite directions, posed a foreseeable risk of harm.

66. The direct and proximate result of Defendant, Pontius', negligence, Mr. Vicéns suffered permanent physical injury and resulting pain and suffering, disability, scarring, disfigurement, mental pain and suffering, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of ability to earn

money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT III: NEGLIGENCE AS TO MUDFLAP MEDIA, LLC

67. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

68. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Mudflap, owed a duty to Mr. Vicéns, and all others similarly situated, to use reasonable care and prevent foreseeable harm in the operation of the watercraft in the previously devised stunt.

69. Defendant, Mudflap, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, by failing to exercise reasonable care in the operation of the watercraft.

70. At all times material, Defendant, Mudflap, knew or should have known that having a Banshee Bungee hooked to both actors, while attempting to operate watercrafts traveling in opposite directions, posed a foreseeable risk of harm.

71. The direct and proximate result of Defendant, Mudflap's, negligence, Mr. Vicéns suffered permanent physical injury and resulting pain and suffering, disability, scarring, disfigurement, mental pain and suffering, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT IV: NEGLIGENCE AS TO YEAH DUDE PRODUCTIONS, LLC

72. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

73. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Yeah Dude, owed a duty to Mr. Vicéns, and all others similarly situated, to use reasonable care and prevent foreseeable harm in the operation of the watercraft in the previously devised stunt.

74. Defendant, Yeah Dude, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, by failing to exercise reasonable care in the operation of the watercraft.

75. At all times material, Defendant, Yeah Dude, knew or should have known that having a Banshee Bungee hooked to both actors, while attempting to operate watercrafts traveling in opposite directions, posed a foreseeable risk of harm.

76. The direct and proximate result of Defendant, Yeah Dude's, negligence, Mr. Vicéns suffered permanent physical injury and resulting pain and suffering, disability, scarring, disfigurement, mental pain and suffering, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT V: NEGLIGENCE AS TO XYZ UNKNOWN DEFENDANTS

77. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

78. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, XYZ, owed a duty to Mr. Vicéns, and all others similarly situated, to use reasonable care and prevent foreseeable harm in the operation of the watercraft in the previously devised stunt.

79. Defendant, XYZ, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, by failing to exercise reasonable care in the operation of the watercraft.

80. At all times material, Defendant, XYZ, knew or should have known that having a Banshee Bungee hooked to both actors, while attempting to operate watercrafts traveling in opposite directions, posed a foreseeable risk of harm.

81. The direct and proximate result of Defendant, XYZ's, negligence, Mr. Vicéns suffered permanent physical injury and resulting pain and suffering, disability, scarring, disfigurement, mental pain and suffering, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT VI: NEGLIGENCE AS TO SCOTT RANDOLPH

82. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

83. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Randolph, owed a duty to Mr. Vicéns, and all others similarly situated, to use reasonable care and prevent foreseeable harm in the operation of the watercraft in the previously devised stunt.

84. Defendant, Randolph, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, by failing to exercise reasonable care in the operation of the watercraft.

85. At all times material, Defendant, Randolph, knew or should have known that having a Banshee Bungee hooked to both actors, while attempting to operate watercrafts traveling in opposite directions, posed a foreseeable risk of harm.

86. The direct and proximate result of Defendant, Randolph's, negligence, Mr. Vicéns suffered permanent physical injury and resulting pain and suffering, disability, scarring, disfigurement, mental pain and suffering, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT VII: NEGLIGENCE AS TO JARROD BROM

87. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

88. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Brom, owed a duty to Mr. Vicéns, and all others similarly situated, to use reasonable care and prevent foreseeable harm in the operation of the watercraft in the previously devised stunt.

89. Defendant, Brom, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, by failing to exercise reasonable care in the operation of the watercraft.

90. At all times material, Defendant, Brom, knew or should have known that having a Banshee Bungee hooked to both actors, while attempting to operate watercrafts traveling in opposite directions, posed a foreseeable risk of harm.

91. The direct and proximate result of Defendant, Brom's, negligence, Mr. Vicéns suffered permanent physical injury and resulting pain and suffering, disability, scarring,

disfigurement, mental pain and suffering, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT VIII: VICARIOUS LIABILITY AS TO MUDEFLAP MEDIA, LLC

92. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

93. Pursuant to 31 P.R. Laws Ann. §5141 & §5142 (Article 1802 & 1803 of Puerto Rico's Civil Code), Defendants, Glover & Pontius, were employed by Defendant, Mudflap, and were under the direct supervision and control as they committed the wrongful act described herein.

94. Defendants, Glover & Pontius', conduct caused damages through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141 & §5142, while in the course and scope of their employment for Defendant, Mudflap, and/or accomplished these wrongful acts by virtue of their job-created authority.

95. Additionally, Defendants, Glover & Pontius, are jointly and severally liable for the damages caused, as each was acting at least in part to serve the interests of their employer, Defendant, Mudflap, as the aforementioned wrongful act was committed.

COUNT IX: VICARIOUS LIABILITY AS TO YEAH DUDE PRODUCTIONS, LLC

96. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

97. Pursuant to 31 P.R. Laws Ann. §5141 & §5142 (Article 1802 & 1803 of Puerto Rico's Civil Code), Defendants, Glover & Pontius, were employed by Defendant, Yeah Dude, and were under the direct supervision and control as they committed the wrongful act described herein.

98. Defendants, Glover & Pontius', conduct caused damages through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141 & §5142, while in the course and scope of their employment for Defendant, Yeah Dude, and/or accomplished these wrongful acts by virtue of their job-created authority.

99. Additionally, Defendants, Glover & Pontius, are jointly and severally liable for the damages caused, as each was acting at least in part to serve the interests of their employer, Defendant, Yeah Dude, as the aforementioned wrongful act was committed.

COUNT X: VICARIOUS LIABILITY AS TO XYZ UNKNOWN DEFENDANTS

100. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

101. Pursuant to 31 P.R. Laws Ann. §5141 & §5142 (Article 1802 & 1803 of Puerto Rico's Civil Code), Defendants, Glover & Pontius, hired Defendant, XYZ, and were under the direct supervision and control as they committed the wrongful act described herein.

102. Defendants, Glover & Pontius' conduct caused damages through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141 & §5142, as Defendant, XYZ, was in the course and scope of employment, and allowed these wrongful acts to occur by virtue of their job-created authority.

103. Additionally, Defendant Glover & Pontius, are jointly and severally liable for the damages caused, as each was acting at least in part to serve the interests of their contracted partner, Defendant, XYZ, as the aforementioned wrongful act was committed.

COUNT XI: VICARIOUS LIABILITY AS TO SCOTT RANDOLPH

104. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

105. Pursuant to 31 P.R. Laws Ann. §5141 & §5142 (Article 1802 & 1803 of Puerto Rico's Civil Code), Defendants, Glover & Pontius, were employed by Defendant, Randolph, and were under the direct supervision and control as they committed the wrongful act described herein.

106. Defendants, Glover & Pontius', conduct caused damages through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141 & §5142, while in the course and scope of their employment for Defendant, Randolph, and/or accomplished these wrongful acts by virtue of their job-created authority.

107. Additionally, Defendants, Glover & Pontius, are jointly and severally liable for the damages caused, as each was acting at least in part to serve the interests of their employer, Defendant, Randolph, as the aforementioned wrongful act was committed.

COUNT XII: VICARIOUS LIABILITY AS TO JARROD BROM

108. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

109. Pursuant to 31 P.R. Laws Ann. §5141 & §5142 (Article 1802 & 1803 of Puerto Rico's Civil Code), Defendants, Glover & Pontius, were employed by Defendant, Brom, and were under the direct supervision and control as they committed the wrongful act described herein.

110. Defendants, Glover & Pontius', conduct caused damages through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141 & §5142, while in the course and scope of their employment for Defendant, Brom, and/or accomplished these wrongful acts by virtue of their job-created authority.

111. Additionally, Defendants, Glover & Pontius, are jointly and severally liable for the damages caused, as each was acting at least in part to serve the interests of their employer, Defendant, Brom, as the aforementioned wrongful act was committed.

**COUNT XIII: NEGLIGENT SUPERVISION AND RETENTION AS TO
MUDFLAP MEDIA, LLC**

112. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

113. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), during the course of agency, Defendant, Mudflap, became aware or should have become aware of problems with the diving company's level of safety experience, Taino Divers, Inc., was negligent in their capacity as a certified safety expert.

114. Defendant, Mudflap, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, as they had a duty to retain only competent, qualified, and safe employees.

115. At all times material, Defendant, Mudflap, breached that duty by failing to retain only competent, qualified, and safe employees, as Taino Divers, Inc., failed to prevent the harmful physical injury to Mr. Vicéns.

116. Additionally, Defendant, Mudflap, had a duty to take reasonable steps to supervise its employee, Taino Divers, Inc., while on the above-described premises.

117. As a direct and proximate result of Defendant, Mudflap's, negligence, Mr. Vicéns did suffer bodily and personal injury, including but not limited to mental anguish, loss of capacity for the enjoyment of life, medical care, treatment and costs associated therewith and the loss of past and future earning capacity. These losses are permanent and continuing in nature.

**COUNT XIV: NEGLIGENT SUPERVISION AND RETENTION AS TO
YEAH DUDE PRODUCTIONS, LLC**

118. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

119. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), during the course of agency, Defendant, Yeah Dude, became aware or should have become aware of problems with the diving company's level of safety experience, Taino Divers, Inc., was negligent in their capacity as a certified safety expert.

120. Defendant, Yeah Dude, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, as they had a duty to retain only competent, qualified, and safe employees.

121. At all times material, Defendant, Yeah Dude, breached that duty by failing to retain only competent, qualified, and safe employees, as Taino Divers, Inc., failed to prevent the harmful physical injury to Mr. Vicéns.

122. Additionally, Defendant, Yeah Dude, had a duty to take reasonable steps to supervise its employee, Taino Divers, Inc., while on the above-described premises.

123. As a direct and proximate result of Defendant, Yeah Dude's, negligence, Mr. Vicéns did suffer bodily and personal injury, including but not limited to mental anguish, loss of capacity for the enjoyment of life, medical care, treatment and costs associated therewith and the loss of past and future earning capacity. These losses are permanent and continuing in nature.

**COUNT XV: NEGLIGENT SUPERVISION AND RETENTION AS TO
SCOTT RANDOLPH**

124. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

125. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), during the course of agency, Defendant, Randolph, became aware or should have become aware of problems with the diving company's level of safety experience, Taino Divers, Inc., was negligent in their capacity as a certified safety expert.

126. Defendant, Randolph, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, as they had a duty to retain only competent, qualified, and safe employees.

127. At all times material, Defendant, Randolph, breached that duty by failing to retain only competent, qualified, and safe employees, as Taino Divers, Inc., failed to prevent the harmful physical injury to Mr. Vicéns.

128. Additionally, Defendant, Randolph, had a duty to take reasonable steps to supervise its employee, Taino Divers, Inc., while on the above-described premises.

129. As a direct and proximate result of Defendant, Randolph's, negligence, Mr. Vicéns did suffer bodily and personal injury, including but not limited to mental anguish, loss of capacity for the enjoyment of life, medical care, treatment and costs associated therewith and the loss of past and future earning capacity. These losses are permanent and continuing in nature.

**COUNT XVI: NEGLIGENT SUPERVISION AND RETENTION AS TO
JARROD BROM**

130. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

131. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), during the course of agency, Defendant, Brom, became aware or should have become aware of problems with the diving company's level of safety experience, Taino Divers Inc., was negligent in their capacity as a certified safety expert.

132. Defendant, Brom, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, as they had a duty to retain only competent, qualified, and safe employees.

133. At all times material, Defendant, Brom, breached that duty by failing to retain only competent, qualified, and safe employees, as Taino Divers, Inc. failed to prevent the harmful physical injury to Mr. Vicéns.

134. Additionally, Defendant, Brom, had a duty to take reasonable steps to supervise its employee, Taino Divers, Inc., while on the above-described premises.

135. As a direct and proximate result of Defendant, Brom's, negligence, Mr. Vicéns did suffer bodily and personal injury, including but not limited to mental anguish, loss of capacity for the enjoyment of life, medical care, treatment and costs associated therewith and the loss of past and future earning capacity. These losses are permanent and continuing in nature.

**COUNT XVII: NEGLIGENT SUPERVISION AND RETENTION AS TO
XYZ UNKNOWN DEFENDANTS**

136. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

137. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), during the course of agency, Defendant, XYZ, became aware or should have become aware of problems with the diving company's level of safety experience, Taino Divers Inc., was negligent in their capacity as a certified safety expert.

138. Defendant, XYZ, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, as they had a duty to retain only competent, qualified, and safe employees.

139. At all times material, Defendant, XYZ, breached that duty by failing to retain only competent, qualified, and safe employees, as Taino Divers, Inc. failed to prevent the harmful physical injury to Mr. Vicéns.

140. Additionally, Defendant, XYZ, had a duty to take reasonable steps to supervise its employee, Taino Divers, Inc., while on the above-described premises.

141. As a direct and proximate result of Defendant, XYZ's, negligence, Mr. Vicéns did suffer bodily and personal injury, including but not limited to mental anguish, loss of capacity for the enjoyment of life, medical care, treatment and costs associated therewith and the loss of past and future earning capacity. These losses are permanent and continuing in nature.

COUNT XVIII: NEGLIGENT HIRING AS TO STEPHEN GLOVER (A/K/A STEVE-O)

142. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

143. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), during the course of agency Defendant, Glover's, employees' work duties with Mudflap Media, LLC, put employees and bystanders in frequent contact with ultrahazardous dangerous activities, as a result of potential imminent physical harm, extreme caution should have been exercised.

144. At all times material, Defendant, Glover, owed a duty to Mr. Vicéns, and all others similarly situated, to ensure the safety of each individual present, and that reasonable care be implemented in selecting and hiring employees.

145. At all times material, Defendant, Glover, owed all individuals, and in particular, Mr. Vicéns, a duty of care to investigate the background of his employees, review their backgrounds and competency to discover unnecessary risks and hazards.

146. Defendant, Glover, breached his duty by failing to screen the background of his employee, which would have revealed employee's lack of history in providing expert safety care.

147. Had Defendant, Glover, properly screened employees and adequately investigated their background, he would have discovered that the employees were unfit and unqualified to work in this particularized setting.

148. As a direct and proximate result of the breach of duty of care to investigate the background of employee, Defendant, Glover, hired employee as an expert in safety care.

149. The direct and proximate result of Defendant, Glover's, breach of duty of care to investigate the background of Taino Divers, Inc., ultimately resulted in a failure to provide necessary expertise in the prevention of physical injury.

150. As a result of Defendant, Glover's, breach of duty of care owed, Mr. Vicéns suffered permanent physical injury and resulting pain and suffering, disability, scarring, disfigurement, mental pain and suffering, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XIX: NEGLIGENT HIRING AS TO CHRIS PONTIUS

151. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

152. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), during the course of agency Defendant, Pontius', employees' work duties with Mudflap Media, LLC, put employees and bystanders in frequent contact with ultrahazardous dangerous activities, as a result of potential imminent physical harm, extreme caution should have been exercised.

153. At all times material, Defendant, Pontius, owed a duty to Mr. Vicéns, and all others similarly situated, to ensure the safety of each individual present, and that reasonable care be implemented in selecting and hiring employees.

154. At all times material, Defendant, Pontius, owed all individuals, and in particular, Mr. Vicéns, a duty of care to investigate the background of his employees, review their backgrounds and competency to discover unnecessary risks and hazards.

155. Defendant, Pontius, breached his duty by failing to screen the background of his employee, which would have revealed employee's lack of history in providing expert safety care.

156. Had Defendant, Pontius, properly screened employees and adequately investigated their background, he would have discovered that the employees were unfit and unqualified to work in this particularized setting.

157. As a direct and proximate result of the breach of duty of care to investigate the background of employee, Defendant, Pontius, hired employee as an expert in safety care.

158. The direct and proximate result of Defendant, Pontius', breach of duty of care to investigate the background of Taino Divers, Inc., ultimately resulted in a failure to provide necessary expertise in the prevention of physical injury.

159. As a result of Defendant, Pontius', breach of duty of care owed, Mr. Vicéns suffered permanent physical injury and resulting pain and suffering, disability, scarring, disfigurement, mental pain and suffering, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XX: NEGLIGENT HIRING AS TO MUDFLAP MEDIA, LLC

160. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

161. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), the nature of Defendant, Mudflap's, employees' work duties, placed those employees and bystanders in frequent contact with ultrahazardous dangerous activities, as a result of potential imminent physical harm, extreme caution should have been exercised.

162. At all times material, Defendant, Mudflap, owed a duty to Mr. Vicéns, and all others similarly situated, to ensure the safety of each individual present, and that reasonable care be implemented in selecting and hiring employees.

163. At all times material, Defendant, Mudflap, owed all individuals, and in particular, Mr. Vicéns, a duty of care to investigate the background of their employees, review their backgrounds and competency to discover unnecessary risks and hazards.

164. Defendant, Mudflap, breached his duty by failing to screen the background of their employee, which would have revealed employee's lack of history in providing expert safety care.

165. Had Defendant, Mudflap, properly screened employees and adequately investigated their background, he would have discovered that the employees were unfit and unqualified to work in this particularized setting.

166. As a direct and proximate result of the breach of duty of care to investigate the background of employee, Defendant, Mudflap, hired employee as an expert in safety care.

167. The direct and proximate result of Defendant, Mudflap's, breach of duty of care to investigate the background of Taino Divers, Inc., ultimately resulted in a failure to provide necessary expertise in the prevention of physical injury.

168. As a result of Defendant, Mudflap's, breach of duty of care owed, Mr. Vicéns suffered permanent physical injury and resulting pain and suffering, disability, scarring, disfigurement, mental pain and suffering, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XXI: NEGLIGENT HIRING AS TO YEAH DUDE PRODUCTIONS, LLC

169. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

170. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), the nature of Defendant, Yeah Dude's, employees' work duties, placed those employees and bystanders in frequent contact with ultrahazardous dangerous activities, as a result of potential imminent physical harm, extreme caution should have been exercised.

171. At all times material, Defendant, Yeah Dude, owed a duty to Mr. Vicéns, and all others similarly situated, to ensure the safety of each individual present, and that reasonable care be implemented in selecting and hiring employees.

172. At all times material, Defendant, Yeah Dude, owed all individuals, and in particular, Mr. Vicéns, a duty of care to investigate the background of their employees, review their backgrounds and competency to discover unnecessary risks and hazards.

173. Defendant, Yeah Dude, breached his duty by failing to screen the background of their employee, which would have revealed employee's lack of history in providing expert safety care.

174. Had Defendant, Yeah Dude, properly screened employees and adequately investigated their background, he would have discovered that the employees were unfit and unqualified to work in this particularized setting.

175. As a direct and proximate result of the breach of duty of care to investigate the background of employee, Defendant, Yeah Dude, hired employee as an expert in safety care.

176. The direct and proximate result of Defendant, Yeah Dude's, breach of duty of care to investigate the background of Taino Divers, Inc., ultimately resulted in a failure to provide necessary expertise in the prevention of physical injury.

177. As a result of Defendant, Yeah Dude's, breach of duty of care owed, Mr. Vicéns suffered permanent physical injury and resulting pain and suffering, disability, scarring, disfigurement, mental pain and suffering, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XXII: NEGLIGENCE HIRING AS TO SCOTT RANDOLPH

178. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

179. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), during the course of agency Defendant, Randolph's, employees' work duties with Mudflap Media, LLC, put employees and bystanders in frequent contact with ultrahazardous dangerous activities, as a result of potential imminent physical harm, extreme caution should have been exercised.

180. At all times material, Defendant, Randolph, owed a duty to Mr. Vicéns, and all others similarly situated, to ensure the safety of each individual present, and that reasonable care be implemented in selecting and hiring employees.

181. At all times material, Defendant, Randolph, owed all individuals, and in particular, Mr. Vicéns, a duty of care to investigate the background of his employees, review their backgrounds and competency to discover unnecessary risks and hazards.

182. Defendant, Randolph, breached his duty by failing to screen the background of his employee, which would have revealed employee's lack of history in providing expert safety care.

183. Had Defendant, Randolph, properly screened employees and adequately investigated their background, he would have discovered that the employees were unfit and unqualified to work in this particularized setting.

184. As a direct and proximate result of the breach of duty of care to investigate the background of employee, Defendant, Randolph, hired employee as an expert in safety care.

185. The direct and proximate result of Defendant, Randolph's, breach of duty of care to investigate the background of Taino Divers, Inc., ultimately resulted in a failure to provide necessary expertise in the prevention of physical injury.

186. As a result of Defendant, Randolph's, breach of duty of care owed, Mr. Vicéns suffered permanent physical injury and resulting pain and suffering, disability, scarring, disfigurement, mental pain and suffering, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XXIII: NEGLIGENT HIRING AS TO JARROD BROM

187. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

188. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), during the course of agency Defendant, Brom's, employees' work duties with Mudflap Media, LLC, put employees and bystanders in frequent contact with ultrahazardous dangerous activities, as a result of potential imminent physical harm, extreme caution should have been exercised.

189. At all times material, Defendant, Brom, owed a duty to Mr. Vicéns, and all others similarly situated, to ensure the safety of each individual present, and that reasonable care be implemented in selecting and hiring employees.

190. At all times material, Defendant, Brom, owed all individuals, and in particular, Mr. Vicéns, a duty of care to investigate the background of his employees, review their backgrounds and competency to discover unnecessary risks and hazards.

191. Defendant, Brom, breached his duty by failing to screen the background of his employee, which would have revealed employee's lack of history in providing expert safety care.

192. Had Defendant, Brom, properly screened employees and adequately investigated their background, he would have discovered that the employees were unfit and unqualified to work in this particularized setting.

193. As a direct and proximate result of the breach of duty of care to investigate the background of employee, Defendant, Brom, hired employee as an expert in safety care.

194. The direct and proximate result of Defendant, Brom's, breach of duty of care to investigate the background of Taino Divers, Inc., ultimately resulted in a failure to provide necessary expertise in the prevention of physical injury.

195. As a result of Defendant, Brom's, breach of duty of care owed, Mr. Vicéns suffered permanent physical injury and resulting pain and suffering, disability, scarring, disfigurement, mental pain and suffering, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XXIV: NEGLIGENT HIRING AS TO XYZ UNKNOWN DEFENDANTS

196. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

197. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), during the course of agency Defendant, XYZ's, employees' work duties with Mudflap Media, LLC, put employees and bystanders in frequent contact with ultrahazardous dangerous activities, as a result of potential imminent physical harm, extreme caution should have been exercised.

198. At all times material, Defendant, XYZ, owed a duty to Mr. Vicéns, and all others similarly situated, to ensure the safety of each individual present, and that reasonable care be implemented in selecting and hiring employees.

199. At all times material, Defendant, XYZ, owed all individuals, and in particular, Mr. Vicéns, a duty of care to investigate the background of his employees, review their backgrounds and competency to discover unnecessary risks and hazards.

200. Defendant, XYZ, breached his duty by failing to screen the background of his employee, which would have revealed employee's lack of history in providing expert safety care.

201. Had Defendant, XYZ, properly screened employees and adequately investigated their background, he would have discovered that the employees were unfit and unqualified to work in this particularized setting.

202. As a direct and proximate result of the breach of duty of care to investigate the background of employee, Defendant, XYZ, hired employee as an expert in safety care.

203. The direct and proximate result of Defendant, XYZ's, breach of duty of care to investigate the background of Taino Divers, Inc., ultimately resulted in a failure to provide necessary expertise in the prevention of physical injury.

204. As a result of Defendant, XYZ's, breach of duty of care owed, Mr. Vicéns suffered permanent physical injury and resulting pain and suffering, disability, scarring, disfigurement, mental pain and suffering, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

**COUNT XXV: STRICT PRODUCTS LIABILITY AS TO
STEPHEN GLOVER (A/K/A STEVE-O)**

205. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

206. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Glover, had the idea crafted for "Jet Ski Tug of War," while being in his exclusive custody and control, the result of the stunt's design and/or manufacture created an unreasonably dangerous physical injury.

207. At all times material, Defendant, Glover, did not use the bungee cord for its intended purpose.

208. At all times material, the stunt failed to meet the consumer's reasonable expectations in that when used for its intended purpose, the stunt components including but not limited to the bungee cord were more dangerous than contemplated by an ordinary consumer with ordinary knowledge.

209. At all times material, Defendant, Glover, owed Mr. Vicéns, and all others similarly situated, a duty to craft these stunts and perform them in a way that prevents physical injury to others.

210. Defendant, Glover, breached this duty by failing to ensure the safety of the individuals present, during the filming of the stunt.

211. As a result, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XXVI: STRICT PRODUCTS LIABILITY AS TO CHRIS PONTIUS

212. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

213. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Pontius, had the idea crafted for "Jet Ski Tug of War," while being in his exclusive custody and control, the result of the stunt's design and/or manufacture created an unreasonably dangerous physical injury.

214. At all times material, Defendant, Pontius, did not use the bungee cord for its intended purpose.

215. At all times material, the stunt failed to meet the consumer's reasonable expectations in that when used for its intended purpose, the stunt components including but not

limited to the bungee cord were more dangerous than contemplated by an ordinary consumer with ordinary knowledge.

216. At all times material, Defendant, Pontius, owed Mr. Vicéns, and all others similarly situated, a duty to craft these stunts and perform them in a way that prevents physical injury to others.

217. Defendant, Pontius, breached this duty by failing to ensure the safety of the individuals present, during the filming of the stunt.

218. As a result, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XXVII: STRICT PRODUCTS LIABILITY AS TO MUDFLAP MEDIA, LLC

219. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

220. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Mudflap, had the idea crafted for "Jet Ski Tug of War," while being in their exclusive custody and control, the result of the stunt's design and/or manufacture created an unreasonably dangerous physical injury.

221. At all times material, Defendant, Mudflap, did not ensure the bungee cord was utilized according to its intended purpose.

222. At all times material, the stunt failed to meet the consumer's reasonable expectations in that when used for its intended purpose, the stunt components including but not limited to the bungee cord were more dangerous than contemplated by an ordinary consumer with ordinary knowledge.

223. At all times material, Defendant, Mudflap, owed Mr. Vicéns, and all others similarly situated, a duty to craft these stunts and perform them in a way that prevents physical injury to others.

224. Defendant, Mudflap, breached this duty by failing to ensure the safety of the individuals present, during the filming of the stunt.

225. As a result, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

**COUNT XXVIII: STRICT PRODUCTS LIABILITY AS TO
YEAH DUDE PRODUCTIONS, LLC**

226. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

227. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Yeah Dude, had the idea crafted for "Jet Ski Tug of War," while being in their exclusive custody and control, the result of the stunt's design and/or manufacture created an unreasonably dangerous physical injury.

228. At all times material, Defendant, Yeah Dude, did not ensure the bungee cord was utilized according to its intended purpose.

229. At all times material, the stunt failed to meet the consumer's reasonable expectations in that when used for its intended purpose, the stunt components including but not limited to the bungee cord were more dangerous than contemplated by an ordinary consumer with ordinary knowledge.

230. At all times material, Defendant, Yeah Dude, owed Mr. Vicéns, and all others similarly situated, a duty to craft these stunts and perform them in a way that prevents physical injury to others.

231. Defendant, Yeah Dude, breached this duty by failing to ensure the safety of the individuals present, during the filming of the stunt.

232. As a result, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XXIX: STRICT PRODUCTS LIABILITY AS TO
XYZ UNKNOWN DEFENDANTS

233. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

234. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, XYZ, had the idea crafted for "Jet Ski Tug of War," while being in their exclusive

custody and control, the result of the stunt's design and/or manufacture created an unreasonably dangerous physical injury.

235. At all times material, Defendant, XYZ, did not ensure the bungee cord was utilized according to its intended purpose.

236. At all times material, the stunt failed to meet the consumer's reasonable expectations in that when used for its intended purpose, the stunt components including but not limited to the bungee cord were more dangerous than contemplated by an ordinary consumer with ordinary knowledge.

237. At all times material, Defendant, XYZ, owed Mr. Vicéns, and all others similarly situated, a duty to craft these stunts and perform them in a way that prevents physical injury to others.

238. Defendant, XYZ, breached this duty by failing to ensure the safety of the individuals present, during the filming of the stunt.

239. As a result, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XXX: NEGLIGENCE PER SE AS TO STEPHEN GLOVER (A/K/A STEVE-O)

240. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

241. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Glover, as a member of Mudflap Media, LLC, violated LAW 121 of the Puerto Rico Film Regulations, as it pertains directly to the obtaining of the required permit, in which insurance coverage is a prerequisite for filming in Puerto Rico.

242. At all times material, Mr. Vicéns was the type of individual that this rule was designed to protect, as it pertains to proper injury related insurance coverage, prior to filming.

243. At all times material, Mr. Vicéns has suffered the type of physical harm that the rule is designed to protect against.

244. At all times material, Defendant, Glover, was under a duty to comply with the applicable statutes, regulations, and rules related to proper procedure for filming in Puerto Rico.

245. Defendant, Glover, breached that duty by failing to comply with the statutes, regulations, and rules related to filming in Puerto Rico.

246. As a result, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XXXI: NEGLIGENCE PER SE AS TO CHRIS PONTIUS

247. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

248. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Pontius, as a member of Mudflap Media, LLC, violated LAW 121 of the Puerto Rico

Film Regulations, as it pertains directly to the obtaining of the required permit, in which insurance coverage is a prerequisite for filming in Puerto Rico.

249. At all times material, Mr. Vicéns was the type of individual that this rule was designed to protect, as it pertains to proper injury related insurance coverage, prior to filming.

250. At all times material, Mr. Vicéns has suffered the type of physical harm that the rule is designed to protect against.

251. At all times material, Defendant, Pontius, was under a duty to comply with the applicable statutes, regulations, and rules related to proper procedure for filming in Puerto Rico.

252. Defendant, Pontius, breached that duty by failing to comply with the statutes, regulations, and rules related to filming in Puerto Rico.

253. As a result, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XXXII: NEGLIGENCE PER SE AS TO MUDDLAP MEDIA, LLC

254. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

255. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Mudflap, as a corporate entity, violated LAW 121 of the Puerto Rico Film Regulations, as it pertains directly to the obtaining of the required permit, in which insurance coverage is a prerequisite for filming in Puerto Rico.

256. At all times material, Mr. Vicéns was the type of individual that LAW 121 was designed to protect, as it pertains to proper injury related insurance coverage, prior to filming.

257. At all times material, Mr. Vicéns has suffered the type of physical harm that the rule is designed to protect against.

258. At all times material, Defendant, Mudflap, was under a duty to comply with the applicable statutes, regulations, and rules related to proper procedure for filming in Puerto Rico.

259. Defendant, Mudflap, breached that duty by failing to comply with the statutes, regulations, and rules related to filming in Puerto Rico.

260. As a result, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XXXIII: NEGLIGENCE PER SE AS TO YEAH DUDE PRODUCTIONS, LLC

261. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

262. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Yeah Dude, as a corporate entity, violated LAW 121 of the Puerto Rico Film Regulations, as it pertains directly to the obtaining of the required permit, in which insurance coverage is a prerequisite for filming in Puerto Rico.

263. At all times material, Mr. Vicéns was the type of individual that LAW 121 was designed to protect, as it pertains to proper injury related insurance coverage, prior to filming.

264. At all times material, Mr. Vicéns has suffered the type of physical harm that the rule is designed to protect against.

265. At all times material, Defendant, Yeah Dude, was under a duty to comply with the applicable statutes, regulations, and rules related to proper procedure for filming in Puerto Rico.

266. Defendant, Yeah Dude, breached that duty by failing to comply with the statutes, regulations, and rules related to filming in Puerto Rico.

267. As a result, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XXXIV: NEGLIGENCE PER SE AS TO XYZ UNKNOWN DEFENDANTS

268. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

269. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, XYZ, as a corporate entity, violated LAW 121 of the Puerto Rico Film Regulations, as it pertains directly to the obtaining of the required permit, in which insurance coverage is a prerequisite for filming in Puerto Rico.

270. At all times material, Mr. Vicéns was the type of individual that LAW 121 was designed to protect, as it pertains to proper injury related insurance coverage, prior to filming.

271. At all times material, Mr. Vicéns has suffered the type of physical harm that the rule is designed to protect against.

272. At all times material, Defendant, XYZ, was under a duty to comply with the applicable statutes, regulations, and rules related to proper procedure for filming in Puerto Rico.

273. Defendant, XYZ, breached that duty by failing to comply with the statutes, regulations, and rules related to filming in Puerto Rico.

274. As a result, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XXXV: NEGLIGENCE PER SE AS TO SCOTT RANDOLPH

275. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

276. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Randolph, as producer, violated LAW 121 of the Puerto Rico Film Regulations, as it pertains directly to the obtaining of the required permit, in which insurance coverage is a prerequisite for filming in Puerto Rico.

277. At all times material, Mr. Vicéns was the type of individual that this rule was designed to protect, as it pertains to proper injury related insurance coverage, prior to filming.

278. At all times material, Mr. Vicéns has suffered the type of physical harm that LAW 121 is designed to protect against.

279. At all times material, Defendant, Randolph, was under a duty to comply with the applicable statutes, regulations, and rules related to proper procedure for filming in Puerto Rico.

280. Defendant, Randolph, breached that duty by failing to comply with the statutes, regulations, and rules related to filming in Puerto Rico.

281. As a result, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XXXVI: NEGLIGENCE PER SE AS TO JARROD BROM

282. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

283. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Brom, as producer, violated LAW 121 of the Puerto Rico Film Regulations, as it pertains directly to the obtaining of the required permit, in which insurance coverage is a prerequisite for filming in Puerto Rico.

284. At all times material, Mr. Vicéns was the type of individual that this rule was designed to protect, as it pertains to proper injury related insurance coverage, prior to filming.

285. At all times material, Mr. Vicéns has suffered the type of physical harm that LAW 121 is designed to protect against.

286. At all times material, Defendant, Brom, was under a duty to comply with the applicable statutes, regulations, and rules related to proper procedure for filming in Puerto Rico.

287. Defendant, Brom, breached that duty by failing to comply with the statutes, regulations, and rules related to filming in Puerto Rico.

288. As a result, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

**COUNT XXXVII: GROSS NEGLIGENCE AS TO
STEPHEN GLOVER (A/K/A STEVE-O)**

289. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

290. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Glover, owed a duty to Mr. Vicéns, and all others similarly situated, to use reasonable care and prevent foreseeable harm in the operation of the watercraft in the previously devised stunt.

291. Defendant, Glover, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, by failing to exercise reasonable care in the operation of the watercraft.

292. Defendant, Glover, intended to participate in a carefully orchestrated stunt, that exhibited conduct so reckless or wanting in care, that it constituted a disregard or indifference to the life, safety, or rights of persons exposed to such conduct.

293. At all times material, Defendant, Glover, exhibited an excessively reckless and/or intentional disregard for the safety of others.

294. As a direct and proximate cause, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but

not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XXXVIII: GROSS NEGLIGENCE AS TO CHRIS PONTIUS

295. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

296. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Pontius, owed a duty to Mr. Vicéns, and all others similarly situated, to use reasonable care and prevent foreseeable harm in the operation of the watercraft in the previously devised stunt.

297. Defendant, Pontius, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, by failing to exercise reasonable care in the operation of the watercraft.

298. Defendant, Pontius, intended to participate in a carefully orchestrated stunt, that exhibited conduct so reckless or wanting in care, that it constituted a disregard or indifference to the life, safety, or rights of persons exposed to such conduct.

299. At all times material, Defendant, Pontius, exhibited an excessively reckless and/or intentional disregard for the safety of others.

300. As a direct and proximate cause, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XXXIX: GROSS NEGLIGENCE AS TO MUFLAP MEDIA, LLC

301. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

302. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Mudflap, owed a duty to Mr. Vicéns, and all others similarly situated, to use reasonable care and prevent foreseeable harm in the operation of the watercraft in the previously devised stunt.

303. Defendant, Mudflap, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, by failing to exercise reasonable care in the operation of the watercraft.

304. Defendant, Mudflap, intended to participate in a carefully orchestrated stunt, that exhibited conduct so reckless or wanting in care, that it constituted a disregard or indifference to the life, safety, or rights of persons exposed to such conduct.

305. At all times material, Defendant, Mudflap, exhibited an excessively reckless and/or intentional disregard for the safety of others.

306. As a direct and proximate cause, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XL: GROSS NEGLIGENCE AS TO YEAH DUDE PRODUCTIONS, LLC

307. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

308. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Yeah Dude, owed a duty to Mr. Vicéns, and all others similarly situated, to use reasonable care and prevent foreseeable harm in the operation of the watercraft in the previously devised stunt.

309. Defendant, Yeah Dude, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, by failing to exercise reasonable care in the operation of the watercraft.

310. Defendant, Yeah Dude, intended to participate in a carefully orchestrated stunt, that exhibited conduct so reckless or wanting in care, that it constituted a disregard or indifference to the life, safety, or rights of persons exposed to such conduct.

311. At all times material, Defendant, Yeah Dude, exhibited an excessively reckless and/or intentional disregard for the safety of others.

312. As a direct and proximate cause, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XLI: GROSS NEGLIGENCE AS TO XYZ UNKNOWN DEFENDANTS

313. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

314. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, XYZ, owed a duty to Mr. Vicéns, and all others similarly situated, to use reasonable care and prevent foreseeable harm in the operation of the watercraft in the previously devised stunt.

315. Defendant, XYZ, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, by failing to exercise reasonable care in the operation of the watercraft.

316. Defendant, XYZ, intended to participate in a carefully orchestrated stunt, that exhibited conduct so reckless or wanting in care, that it constituted a disregard or indifference to the life, safety, or rights of persons exposed to such conduct.

317. At all times material, Defendant, XYZ, exhibited an excessively reckless and/or intentional disregard for the safety of others.

318. As a direct and proximate cause, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XLII: GROSS NEGLIGENCE AS TO SCOTT RANDOLPH

319. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

320. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Randolph, owed a duty to Mr. Vicéns, and all others similarly situated, to use

reasonable care and prevent foreseeable harm in the operation of the watercraft in the previously devised stunt.

321. Defendant, Randolph, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, by failing to ensure that reasonable care was utilized in the operation of the watercraft.

322. Defendant, Randolph, intended to produce a carefully orchestrated stunt, that exhibited conduct so reckless or wanting in care, that it constituted a disregard or indifference to the life, safety, or rights of persons exposed to such conduct.

323. At all times material, Defendant, Randolph, coordinated a stunt, which exhibited an excessively reckless and/or intentional disregard for the safety of others.

324. As a direct and proximate cause, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XLIII: GROSS NEGLIGENCE AS TO JARROD BROM

325. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

326. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Defendant, Brom, owed a duty to Mr. Vicéns, and all others similarly situated, to use reasonable care and prevent foreseeable harm in the operation of the watercraft in the previously devised stunt.

327. Defendant, Brom, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, by failing to ensure that reasonable care was utilized in the operation of the watercraft.

328. Defendant, Brom, intended to produce a carefully orchestrated stunt, that exhibited conduct so reckless or wanting in care, that it constituted a disregard or indifference to the life, safety, or rights of persons exposed to such conduct.

329. At all times material, Defendant, Brom, coordinated a stunt, which exhibited an excessively reckless and/or intentional disregard for the safety of others.

330. As a direct and proximate cause, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

**COUNT XLIV: LOSS OF CONSORTIUM BY
PLAINTIFF, KATGIE TORRENS-BETANCOURT AS TO ALL DEFENDANTS**

331. Plaintiffs incorporate and re-allege paragraphs one (1) through fifty-six (56) set forth and alleged herein.

332. Pursuant to 31 P.R. Laws Ann. §282 & §5141 (Article 1802 of Puerto Rico's Civil Code), Co-Plaintiff, Mrs. Torrens, shares a community property partnership, in that she is the spouse of Mr. Vicéns.

333. As a direct and proximate cause of the named Defendants' negligence as alleged herein, Mrs. Torrens has lost support, services, companionship, protection, and potential future income from her spouse, Mr. Vicéns.

334. As a direct and proximate cause of the named Defendants' negligence as alleged herein, Mrs. Torrens has incurred severe mental pain and suffering from the date of injury and continuing into the future, as well as the continued medical expenses for Mr. Vicéns.

V.
CROSS-CLAIM CAUSES OF ACTION
COUNT I: NEGLIGENCE AS TO FABIOLA CORDERO

335. Cross-Claimant incorporates and re-alleges paragraphs one (1) through fifty-six (56) set forth and alleged herein.

336. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Cross-Defendant, Cordero, owed a duty to Mr. Vicéns, and all others similarly situated, to use reasonable care and prevent foreseeable harm in the operation of the watercraft in the previously devised stunt.

337. Cross-Defendant, Cordero, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, by failing to exercise reasonable care in the operation of the watercraft.

338. At all times material, Cross-Defendant, Cordero, knew or should have known that having a Banshee Bungee cord hooked to both actors, while attempting to operate watercrafts traveling in opposite directions, posed a foreseeable risk of harm.

339. As a direct and proximate result of Cross-Defendant, Cordero's, negligence, Mr. Vicéns suffered permanent physical injury and resulting pain and suffering, disability, scarring, disfigurement, mental pain and suffering, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

**COUNT II: NEGLIGENCE AS TO JOVAN MEJIAS D/B/A/
RINCÓN WAVES HYDROFLIGHTS**

340. Cross-Claimant incorporates and re-alleges paragraphs one (1) through fifty-six (56) set forth and alleged herein.

341. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Cross-Defendant, Mejias, owed a duty to Mr. Vicéns, and all others similarly situated, to use reasonable care and prevent foreseeable harm in the operation of the watercraft in the previously devised stunt.

342. Cross-Defendant, Mejias, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, by failing to exercise reasonable care in the operation of the watercraft.

343. At all times material, Cross-Defendant, Mejias, knew or should have known that having a Banshee Bungee cord hooked to both actors, while attempting to operate watercrafts traveling in opposite directions, posed a foreseeable risk of harm.

344. As a direct and proximate result of Cross-Defendant, Mejias', negligence, Mr. Vicéns suffered permanent physical injury and resulting pain and suffering, disability, scarring, disfigurement, mental pain and suffering, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT III: NEGLIGENCE AS TO XYZ UNKNOWN DEFENDANTS

345. Cross-Claimant incorporates and re-alleges paragraphs one (1) through fifty-six (56) set forth and alleged herein.

346. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Cross-Defendant, XYZ, owed a duty to Mr. Vicéns, and all others similarly situated, to use reasonable care and prevent foreseeable harm in the operation of the watercraft in the previously devised stunt.

347. Cross-Defendant, XYZ, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, by failing to exercise reasonable care in the operation of the watercraft.

348. At all times material, Cross-Defendant, XYZ, knew or should have known that having a Banshee Bungee cord hooked to both actors, while attempting to operate watercrafts traveling in opposite directions, posed a foreseeable risk of harm.

349. As a direct and proximate result of Cross-Defendant, XYZ's, negligence, Mr. Vicéns suffered permanent physical injury and resulting pain and suffering, disability, scarring, disfigurement, mental pain and suffering, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

**COUNT IV: VICARIOUS LIABILITY AS TO JOVAN MEJIAS D/B/A/
RINCÓN WAVES HYDROFLIGHTS**

350. Cross-Claimant incorporates and re-alleges paragraphs one (1) through fifty-six (56) set forth and alleged herein.

351. Pursuant to 31 P.R. Laws Ann. §5141 & §5142 (Article 1802 & 1803 of Puerto Rico's Civil Code), Defendants, Glover & Pontius, hired Cross-Defendant, Mejias, and were under the direct supervision and control as they committed the wrongful act described herein.

352. Defendants, Glover & Pontius', conduct caused damages through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141 & §5142, as Cross-Defendant, Mejias, was in the course and scope of employment, and allowed these wrongful acts to occur by virtue of their job-created authority.

353. Additionally, Defendant Glover & Pontius, are jointly and severally liable for the damages caused, as each was acting at least in part to serve the interests of their contracted partner, Cross-Defendant, Mejias, as the aforementioned wrongful act was committed.

COUNT V: VICARIOUS LIABILITY AS TO XYZ UNKNOWN DEFENDANTS

354. Cross-Claimant incorporates and re-alleges paragraphs one (1) through fifty-six (56) set forth and alleged herein.

355. Pursuant to 31 P.R. Laws Ann. §5141 & §5142 (Article 1802 & 1803 of Puerto Rico's Civil Code), Defendants, Glover & Pontius, hired Cross-Defendant, Mejias, and were under the direct supervision and control as they committed the wrongful act described herein.

356. Defendants, Glover & Pontius', conduct caused damages through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141 & §5142, as Cross-Defendant, Mejias, was in the course and scope of employment, and allowed these wrongful acts to occur by virtue of their job-created authority.

357. Additionally, Defendant Glover & Pontius, are jointly and severally liable for the damages caused, as each was acting at least in part to serve the interests of their contracted partner, Cross-Defendant, Mejias, as the aforementioned wrongful act was committed.

**COUNT VI: NEGLIGENT SUPERVISION AND RETENTION AS TO JOVAN MEJIAS
D/B/A/ RINCÓN WAVES HYDROFLIGHTS**

358. Cross-Claimant incorporates and re-alleges paragraphs one (1) through fifty-six (56) set forth and alleged herein.

359. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), during the course of agency, Cross-Defendant, Mejias, became aware or should have become aware of problems with the diving company's level of safety experience, Taino Divers Inc., was negligent in their capacity as a certified safety expert.

360. Cross-Defendant, Mejias breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, as they had a duty to retain only competent, qualified, and safe employees.

361. At all times material, Cross-Defendant, Mejias breached that duty by failing to retain only competent, qualified, and safe employees, as Taino Divers, Inc. failed to prevent the harmful physical injury to Mr. Vicéns.

362. Additionally, Cross-Defendant, Mejias had a duty to take reasonable steps to supervise its employee, Taino Divers, Inc., while on the above-described premises.

363. As a direct and proximate result of Cross-Defendant, Mejias', negligence, Mr. Vicéns did suffer bodily and personal injury, including but not limited to mental anguish, loss of capacity for the enjoyment of life, medical care, treatment and costs associated therewith and the loss of past and future earning capacity. These losses are permanent and continuing in nature.

COUNT VII: NEGLIGENT SUPERVISION AND RETENTION AS TO
XYZ UNKNOWN DEFENDANTS

364. Cross-Claimant incorporates and re-alleges paragraphs one (1) through fifty-six (56) set forth and alleged herein.

365. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), during the course of agency, Cross-Defendant, XYZ, became aware or should have become aware of problems with the diving company's level of safety experience, Taino Divers Inc., was negligent in their capacity as a certified safety expert.

366. Cross-Defendant, XYZ, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, as they had a duty to retain only competent, qualified, and safe employees.

367. At all times material, Cross-Defendant, XYZ, breached that duty by failing to retain only competent, qualified, and safe employees, as Taino Divers, Inc. failed to prevent the harmful physical injury to Mr. Vicéns.

368. Additionally, Cross-Defendant, XYZ, had a duty to take reasonable steps to supervise its employee, Taino Divers, Inc., while on the above-described premises.

369. As a direct and proximate result of Cross-Defendant, XYZ's, negligence, Mr. Vicéns did suffer bodily and personal injury, including but not limited to mental anguish, loss of capacity for the enjoyment of life, medical care, treatment and costs associated therewith and the loss of past and future earning capacity. These losses are permanent and continuing in nature.

**COUNT VIII: NEGLIGENT HIRING AS TO JOVAN MEJIAS D/B/A/
RINCÓN WAVES HYDROFLIGHTS**

370. Cross-Claimant incorporates and re-alleges paragraphs one (1) through fifty-six (56) set forth and alleged herein.

371. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), during the course of agency Cross-Defendant, Mejias', employees' work duties with Mudflap Media, LLC, put employees and bystanders in frequent contact with ultrahazardous dangerous activities, as a result of potential imminent physical harm, extreme caution should have been exercised.

372. At all times material, Cross-Defendant, Mejias, owed a duty to Mr. Vicéns, and all others similarly situated, to ensure the safety of each individual present, and that reasonable care be implemented in selecting and hiring employees.

373. At all times material, Cross-Defendant, Mejias, owed all individuals, and in particular, Mr. Vicéns, a duty of care to investigate the background of his employees, review their backgrounds and competency to discover unnecessary risks and hazards.

374. Cross-Defendant, Mejias, breached his duty by failing to screen the background of his employee, which would have revealed employee's lack of history in providing expert safety care.

375. Had Cross-Defendant, Mejias, properly screened employees and adequately investigated their background, he would have discovered that the employees were unfit and unqualified to work in this particularized setting.

376. As a direct and proximate result of the breach of duty of care to investigate the background of employee, Cross-Defendant, Mejias, hired employee as an expert in safety care.

377. As a direct and proximate result of Cross-Defendant, Mejias', breach of duty of care to investigate the background of Taino Divers, Inc., ultimately resulted in a failure to provide necessary expertise in the prevention of physical injury.

378. As a result of Cross-Defendant, Mejias', breach of duty of care owed, Mr. Vicéns suffered permanent physical injury and resulting pain and suffering, disability, scarring, disfigurement, mental pain and suffering, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT VIII: NEGLIGENT HIRING AS TO XYZ UNKNOWN DEFENDANTS

379. Cross-Claimant incorporates and re-alleges paragraphs one (1) through fifty-six (56) set forth and alleged herein.

380. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), during the course of agency Cross-Defendant, XYZ, employees' work duties with Mudflap Media, LLC, put employees and bystanders in frequent contact with ultrahazardous dangerous activities, as a result of potential imminent physical harm, extreme caution should have been exercised.

381. At all times material, Cross-Defendant, XYZ, owed a duty to Mr. Vicéns, and all others similarly situated, to ensure the safety of each individual present, and that reasonable care be implemented in selecting and hiring employees.

382. At all times material, Cross-Defendant, XYZ, owed all individuals, and in particular, Mr. Vicéns, a duty of care to investigate the background of his employees, review their backgrounds and competency to discover unnecessary risks and hazards.

383. Cross-Defendant, XYZ, breached his duty by failing to screen the background of his employee, which would have revealed employee's lack of history in providing expert safety care.

384. Had Cross-Defendant, XYZ, properly screened employees and adequately investigated their background, he would have discovered that the employees were unfit and unqualified to work in this particularized setting.

385. As a direct and proximate result of the breach of duty of care to investigate the background of employee, Cross-Defendant, XYZ, hired employee as an expert in safety care.

386. As a direct and proximate result of Defendant, XYZ's, breach of duty of care to investigate the background of Taino Divers, Inc., ultimately resulted in a failure to provide necessary expertise in the prevention of physical injury.

387. As a result of Cross-Defendant, XYZ's, breach of duty of care owed, Mr. Vicéns suffered permanent physical injury and resulting pain and suffering, disability, scarring,

disfigurement, mental pain and suffering, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, and loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

**COUNT IX: STRICT PRODUCTS LIABILITY AS TO JOVAN MEJIAS D/B/A/
RINCÓN WAVES HYDROFLIGHTS**

388. Cross-Claimant incorporates and re-alleges paragraphs one (1) through fifty-six (56) set forth and alleged herein.

389. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Cross-Defendant, Mejias, had the idea crafted for "Jet Ski Tug of War," while being in their exclusive custody and control, the result of the stunt's design and/or manufacture created an unreasonably dangerous physical injury.

390. At all times material, Cross-Defendant, Mejias, did not ensure the bungee cord was utilized according to its intended purpose.

391. At all times material, the stunt failed to meet the consumer's reasonable expectations in that when used for its intended purpose, the stunt components including but not limited to the bungee cord were more dangerous than contemplated by an ordinary consumer with ordinary knowledge.

392. At all times material, Cross-Defendant, Mejias, owed Mr. Vicéns, and all others similarly situated, a duty to craft these stunts and perform them in a way that prevents physical injury to others.

393. Cross-Defendant, Mejias, breached this duty by failing to ensure the safety of the individuals present, during the filming of the stunt.

394. As a result, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT X: STRICT PRODUCTS LIABILITY AS TO XYZ UNKNOWN DEFENDANTS

395. Cross-Claimant incorporates and re-alleges paragraphs one (1) through fifty-six (56) set forth and alleged herein.

396. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Cross-Defendant, XYZ, had the idea crafted for "Jet Ski Tug of War," while being in their exclusive custody and control, the result of the stunt's design and/or manufacture created an unreasonably dangerous physical injury.

397. At all times material, Cross-Defendant, XYZ, did not ensure the bungee cord was utilized according to its intended purpose.

398. At all times material, the stunt failed to meet the consumer's reasonable expectations in that when used for its intended purpose, the stunt components including but not limited to the bungee cord were more dangerous than contemplated by an ordinary consumer with ordinary knowledge.

399. At all times material, Cross-Defendant, XYZ, owed Mr. Vicéns, and all others similarly situated, a duty to craft these stunts and perform them in a way that prevents physical injury to others.

400. Cross-Defendant, XYZ, breached this duty by failing to ensure the safety of the individuals present, during the filming of the stunt.

401. As a result, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

**COUNT XI: NEGLIGENCE PER SE AS TO JOVAN MEJIAS D/B/A/
RINCÓN WAVES HYDROFLIGHTS**

402. Cross-Claimant incorporates and re-alleges paragraphs one (1) through fifty-six (56) set forth and alleged herein.

403. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Cross-Defendant, Mejias, as a corporate entity, violated LAW 121 of the Puerto Rico Film Regulations, as it pertains directly to the obtaining of the required permit, in which insurance coverage is a prerequisite for filming in Puerto Rico.

404. At all times material, Mr. Vicéns was the type of individual that LAW 121 was designed to protect, as it pertains to proper injury related insurance coverage, prior to filming.

405. At all times material, Mr. Vicéns has suffered the type of physical harm that the rule is designed to protect against.

406. At all times material, Cross-Defendant, Mejias, was under a duty to comply with the applicable statutes, regulations, and rules related to proper procedure for filming in Puerto Rico.

407. Cross-Defendant, Mejias, breached that duty by failing to comply with the statutes, regulations, and rules related to filming in Puerto Rico.

408. As a result, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XII: NEGLIGENCE PER SE AS TO XYZ UNKNOWN DEFENDANTS

409. Cross-Claimant incorporates and re-alleges paragraphs one (1) through fifty-six (56) set forth and alleged herein.

410. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Cross-Defendant, XYZ, as a corporate entity, violated LAW 121 of the Puerto Rico Film Regulations, as it pertains directly to the obtaining of the required permit, in which insurance coverage is a prerequisite for filming in Puerto Rico.

411. At all times material, Mr. Vicéns was the type of individual that LAW 121 was designed to protect, as it pertains to proper injury related insurance coverage, prior to filming.

412. At all times material, Mr. Vicéns has suffered the type of physical harm that the rule is designed to protect against.

413. At all times material, Cross-Defendant, XYZ, was under a duty to comply with the applicable statutes, regulations, and rules related to proper procedure for filming in Puerto Rico.

414. Cross-Defendant, XYZ, breached that duty by failing to comply with the statutes, regulations, and rules related to filming in Puerto Rico.

415. As a result, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

**COUNT XIII: GROSS NEGLIGENCE AS TO JOVAN MEJIAS D/B/A/
RINCÓN WAVES HYDROFLIGHTS**

416. Cross-Claimant incorporates and re-alleges paragraphs one (1) through fifty-six (56) set forth and alleged herein.

417. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Cross-Defendant, Mejias, owed a duty to Mr. Vicéns, and all others similarly situated, to use reasonable care and prevent foreseeable harm in the operation of the watercraft in the previously devised stunt.

418. Cross-Defendant, Mejias, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, by failing to exercise reasonable care in the operation of the watercraft.

419. Cross-Defendant, Mejias, intended to participate in a carefully orchestrated stunt, that exhibited conduct so reckless or wanting in care, that it constituted a disregard or indifference to the life, safety, or rights of persons exposed to such conduct.

420. At all times material, Cross-Defendant, Mejias, exhibited an excessively reckless and/or intentional disregard for the safety of others.

421. As a direct and proximate cause, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and

suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

COUNT XIV: GROSS NEGLIGENCE AS TO XYZ UNKNOWN DEFENDANTS

422. Cross-Claimant incorporates and re-alleges paragraphs one (1) through fifty-six (56) set forth and alleged herein.

423. Pursuant to 31 P.R. Laws Ann. §5141 (Article 1802 of Puerto Rico's Civil Code), Cross-Defendant, XYZ, owed a duty to Mr. Vicéns, and all others similarly situated, to use reasonable care and prevent foreseeable harm in the operation of the watercraft in the previously devised stunt.

424. Cross-Defendant, XYZ, breached that duty through fault and/or negligence, in violation of 31 P.R. Laws Ann. §5141, by failing to exercise reasonable care in the operation of the watercraft.

425. Cross-Defendant, XYZ, intended to participate in a carefully orchestrated stunt, that exhibited conduct so reckless or wanting in care, that it constituted a disregard or indifference to the life, safety, or rights of persons exposed to such conduct.

426. At all times material, Cross-Defendant, XYZ, exhibited an excessively reckless and/or intentional disregard for the safety of others.

427. As a direct and proximate cause, Mr. Vicéns suffered damages, including, but not limited to, permanent physical injury and resulting pain and suffering, disability, mental pain and suffering, and loss of capacity for the enjoyment of life. Plaintiff incurred expenses, including, but not limited to, the expense of hospitalization, medical and nursing care and treatment, loss of

earnings, loss of ability to earn money. The losses are permanent and continuing in nature and Plaintiff will suffer the losses in the future.

TRIAL BY JURY DEMANDED

Plaintiffs hereby demand trial by jury on all causes of action herein raised.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs/Cross-Claimant demand judgment against all Defendants and Cross-Defendants, jointly and severally. While Plaintiffs defer to the judgment of a jury, they estimate the value of these damages at or above \$12,975,000.00, as well as costs incurred, reasonable attorneys' fees, and such other and further relief as to this Honorable Court may seem just and proper under the law.

RESPECTFULLY SUBMITTED.

In San Juan, Puerto Rico, this 28th day of January, 2022.

Plaintiff's Counsel:

(Lead Counsel, admitted Pro hac vice)

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